

UNIVERSITY CREDIT UNION v BERRY

25CVF15100

DEFENDANT’S MOTION FOR RELIEF FROM DEFAULT

This is an action for judicial foreclosure, breach of contract, and declaratory relief brought by University Credit Union (“Plaintiff”) against Yvonne L. Berry, individually and as the Trustee of the Yvonne L. Berry Trust Dated July 19, 2018 (“Defendant.”)

Now before the Court is Defendant’s Motion to Set Aside Default.

I. RELEVANT PROCEDURAL HISTORY

On March 25, 2025, Plaintiff filed a complaint against Defendant. Proof of service was filed on May 5, 2025, reflecting that Defendant had been served, by personal service, on March 31, 2025, by a registered California process server who signed the document under penalty of perjury.

On May 5, 2025, Plaintiff filed a request for entry of default judgment which was entered by the Court. On May 6, 2025 the Court entered a judgment after default, awarding Plaintiff a total judgment of \$38,925.39. It was further ordered that plaintiff is entitled to repossession of the solar energy system.

Defendant filed her motion for relief from default on June 27, 2025.

II. Legal Standard and Analysis

Code Civil Procedure section 473(d) authorizes the Court to vacate a judgment that is void while section 473(b) permits the Court to set aside a judgment entered because of mistake, inadvertence, surprise, or excusable neglect. Because courts favor resolution on the merits, “when a party in default moves promptly to seek relief, very slight evidence is required to justify a trial court’s order setting aside a default.” (*Shamblin v. Brattain* (1988) 44 Cal.3d 474, 478-479 [citation omitted].)

Defendant moves for relief on the grounds that the date provided in the service of summons is incorrect. She avers that she was actually served on April 5, 2025. (Declaration of Yvonne Berry ("Berry Decl.") ¶ 2.) Essentially, Defendant admits to being served on April 5, 2025, which would have rendered her Answer due on May 5, 2025 – the day Plaintiff moved for default.

It is unclear from the docket when Defendant became aware of the default against her, though she states it was not until she attempted to file an Answer. (Berry Decl. ¶ 3.) What is clear is that Defendant, who is representing herself *pro se*, did not wait an inordinate amount of time to seek relief from default. Instead, she filed her motion only a few weeks after the default was entered.

"The law favors judgments based on the merits, not procedural missteps. Our Supreme court has repeatedly reminded us that in this area doubts must be resolved in favor of relief, with an order denying relief scrutinized more carefully than an order granting it." (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.) Further, courts do not tend to reward gamesmanship. (*Solorzano v. Koutures* (2021) 2021 Cal. Super LEXIS 116272 [relief from default is almost routinely given at early stages of proceedings, and going through the process of filing for default "increases the costs of litigation and wastes precious judicial resources and smacks of gamesmanship."].)

Given the Defendant's assertion that she was not served until April 5, 2025, that she took reasonable steps to file an Answer, and then took relatively prompt steps to seek relief from default, the Court finds Defendant has presented substantial justification for setting aside the default.

For the foregoing reasons, Defendant's motion to vacate default judgment is **GRANTED**. Defendant must serve and file her Answer with the Court by 3:00 p.m. on August 15, 2025.

The clerk shall provide notice of this ruling to the parties forthwith. Defendant to submit a formal Order in compliance with Rule of Court 3.1312 in conformity with this Ruling.

10:00 a.m.

MATTER OF SILVEIRA

21PR8357

OBJECTORS' MOTION FOR JUDGMENT ON THE PLEADINGS

This matter includes four consolidated probate petitions and one related civil complaint and a convoluted factual and procedural history.

Now before the Court is a Motion for Judgment on the Pleadings brought by "Objectors" Francille Elaine Peters, Individually, as Beneficiary, as Executor, and as Co-Trustee; Rodd Peters; and David J. Silveira, Jr., Individually and as Personal Representative (hereinafter "Objectors.")

The unopposed Request for Judicial Notice of the consolidation of all matters is granted.

I. Background

Carolyn Silveira ("Carolyn")¹ and David J. Silveira Sr. ("David, Sr.") were a married couple with five children: Audrey Petricevich ("Audrey"), Manuel Silveira ("Manuel"), Francille Elaine Peters ("Francille"), David Silveira Jr. ("David Jr. ") and "Dominick Silveira ("Dominick").

Relevant to the instant motion, on March 17, 2021, David, Sr. individually and as trustee of the David J. Silveira Revocable Living Trust dated January 8, 2020, Audrey, Manuel, and Dominick filed a Petition against Francille², Rodd Peters ("Rodd"),³ the Estate of Carolyn Silveira ("Estate"), and David Jr. The Petition's third cause of action is for Quiet Title against Francille, as Trustee, only. The fourth cause of action is for Partition in Kind against all Respondents.

¹ Due to the common surnames, first names will be used for all parties. No disrespect is intended.

² Against her individually and as successor Trustee of the Carolyn L. Silveira Separate Property Revocable Trust, dated August 2, 2016.

³ Against him individually and as Co-Trustee of The Peters Family Trust, dated March 7, 2013.